

23NWCV03214 23NWCV03214

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-07

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Case Number: 23NWCV03214 Hearing Date: July 7, 2026 Dept: R

#14

LOPEZ, ET AL. v. PRICE,
ET AL.

CASE

NO.: 23NWCV03214

HEARING:

Tuesday, July 7, 2026, at 9:30 AM

I.

Defendants

TONY ANTONIO PRICE and TONY's TRANSPORTATION, LLC's Motion to Compel non-party Luxe Surgical Center of Encino, Inc.'s Compliance with Deposition Subpoena for Production of Business Records is GRANTED.

II.

Defendants

TONY ANTONIO PRICE and TONY's TRANSPORTATION, LLC's Motion to Compel non-party Dr. Alen A. Nourian Compliance with Deposition Subpoena for Production of Business Records is GRANTED.

Moving party to give notice.

Background

On October 6, 2023, Plaintiffs ROSA LEE LOPEZ and

ALFONSO VILLRRAEL ("Plaintiffs") filed this Negligence action against Defendants TONY ANTONIO PRICE; TONY's TRANSPORTATION, LLC's ("Defendants"); and DOES 1 to 100, inclusive.

Plaintiffs' Complaint asserts the following causes of action:

(1) General Negligence; and

(2) Motor Vehicle

On

March 18, 2026, Defendants served a Deposition Subpoenas for Production of Business Records on non-parties Dr. Alen A. Nourian ("Dr. Nourian") and Luxe Surgical Center of Encino, Inc. ("Luxe").

Third-Party Subpoena

Under Code of Civil Procedure section 2020.210, subdivision (b), an attorney of record for any party may sign and issue a deposition subpoena. Under section 2020.430, subdivision (a), if a deposition subpoena commands only the production of business records for copying, the custodian of the records or other qualified person shall deliver both a true, legible, and durable copy of the records, and an affidavit authenticating the copies and records.

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, the Court may make an order directing compliance. (CCP § 1971(a).)

Here,

Defendants served a subpoena on non-parties Dr. Nourian and Luxe. Dr. Nourian and Luxe failed to object or move to quash. Thus, Defendants' motions are GRANTED.

Non-Party

Dr. Alen A. Nourian is ORDERED to provide verified responses and documents, without objection by no later than 10 days from date of the Court's issuance of this Order.

Non-Party

Luxe Surgical Center of Encino, Inc. is ORDERED to provide verified responses and documents, without objection by no later than 10 days from date of the Court's issuance of this Order.

Reasonable sanctions are GRANTED in the total amount of \$200.00. Non-Party Dr. Alen A. Nourian is ORDERED to pay Moving Party and their counsel of record sanctions in the total amount of \$200.00, payable within 30 days from the date of the Court's issuance of this Order.

Reasonable sanctions are GRANTED in the total amount of \$200.00. Non-party Luxe Surgical Center of Encino, Inc. is ORDERED to pay Moving Party and their counsel of record sanctions in the total amount of \$200.00, payable within 60 days from the date of the Court's issuance of this Order.